

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
OSWALD MCLEAN,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, Det. JEREMY VEIT, Det.
MACK LIPINSKI, Det. DORIS LOPEZ and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious and
meant to designate additional offending officers,

The basis of venue is:
CPLR 504 (3)

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

November 4, 2013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Det. Jeremy Veit of the NBBX,, Shield No. 2516, Det. Mack Lipinski of the NARCBX,, Shield No. 00926,
Det. Doris Lopez of the NBBX,, Shield No. 12703, of the 1 POLICE PLAZA, NY NY 10038

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TO
COUNTY CLERK
BRONX COUNTY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
OSWALD MCLEAN,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. JEREMY VEIT, Det. MACK
LIPINSKI, Det. DORIS LOPEZ and OFFICER[S] JOHN
AND JAMES DOE, names being fictitious and meant
to designate additional offending officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF OSWALD MCLEAN

1. At the time of the commencement of this action, Plaintiff OSWALD MCLEAN

was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about August 8, 2012, Det. JEREMY VEIT was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about August 8, 2012, at approximately 3:15 P.M., Det. JEREMY VEIT was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about August 8, 2012, Det. MACK LIPINSKI was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about August 8, 2012, at approximately 3:15 P.M., Det. MACK LIPINSKI was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about August 8, 2012, Det. DORIS LOPEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about August 8, 2012, at approximately 3:15 P.M., Det. DORIS LOPEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about August 8, 2012, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about August 8, 2012 at approximately 3:15 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

13. That on or about August 8, 2012 at approximately 3:15 P.M., at or near the northeast corner of East 187th Street and Crotona Avenue, Bronx, New York, the plaintiff OSWALD MCLEAN was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine OSWALD MCLEAN.

14. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

15. That the defendants, their agents, servants and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock, emotional distress and physical consequences.

16. That subsequent to his arrest, at the 48th Precinct, 450 Cross Bronx Expressway, Bronx New York, defendants, their agents, servants and/or employees invasively searched plaintiff OSWALD MCLEAN without a reasonable articulable suspicion that he was secreting evidence under his clothes or within a bodily cavity.

17. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

18. That the defendants Det. JEREMY VEIT, Det. MACK LIPINSKI, Det. DORIS LOPEZ and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

19. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

20. That all criminal charges brought against plaintiff, which were brought under docket number 2012BX045714 in the Bronx County Supreme Court Criminal Division regarding the incidents of August 8, 2012, were dismissed by the Honorable George Villegas on September 20, 2012, and the criminal proceedings were terminated in plaintiff's favor.

21. That all criminal charges brought against plaintiff were begun in malice without a reasonable belief that the prosecution would succeed.

22. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

23. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately forty three days.

24. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population without reprimand to the offending officers. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

25. Further, officers of the New York City Police Department, and especially and specifically officers of the Narcotics Division and 48th Precinct routinely engage in the use of practices such as illegal, unlawful and unnecessary strip searches and anal cavity searches without individualized reasonable suspicion of the secreting of evidence inside a bodily cavity in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even

bone fide internal investigation to deter actions like those complained of herein even though these occurrences are well known and almost routine, and evidenced by the multitude of actions brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs.

26. Said policy and procedure of having productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely stop minority men without a legal reason to do so and are required or expected to do so, to satisfy arrest quotas. Said productivity goals lead to a practice and procedure of, for instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist as to each arrested individual.

27. Such unlawful arrests, as a small sample, has occurred to such individuals such as ADEUNA CABRAL JOSEFINA CABRAL and ZOIKY BELEN, on January 15, 2009 at

approximately 7:30 A.M., at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010, at approximately 6:30 A.M; and LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010 at approximately 7 A.M., at 3321 Seymour Avenue, Bronx, New York; and CHRISTINA FELIZ and DENISE THOMAS on April 8, 2010; and SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue , Bronx, New York; TREENA WILSON, ERIN OLIVER, ERIC OLIVER and KENNETH CLARKE on or about April 8, 2010 at approximately 3:15 P.M., at or near 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse; MARIA ORTEGA on October 29, 2010 at 614 East 168th Street, Apt. 2B, Bronx, New York; NICOLE MITCHELL, SEAN MITCHELL and BRITTNAY CAMPBELL on May 16, 2010 at 2260 Crotona Avenue; additionally and specifically defendant Det. JEREMY VEIT falsely arrested ESMIRNA CRUZ and ELI SANTOS on September 21, 2007 at or about the 268 Willis Avenue, Bronx, New York; and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought

against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

28. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to other individuals such as, for instance, ANABAL ROLON and McKINLEY KING, who were strip searched by officers of the 48th Precinct on April 2, 2010; CHARITY GARCIA and TAMARA GARCIA who were strip searched by officers of the 48th Precinct on April 16, 2010 and DAVID ACABEO who was strip searched by officers of the 48th Precinct on June 16, 2010 and ARAMIS RODRIGUEZ who was strip searched by officers of the 48th Precinct on April 13, 2011, and JONATHAN BAILEY who was strip searched by officers of the 48th Precinct on August 3, 2011, and is well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

29. The herein above described actions and omissions, engaged in under the color

of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his property and person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

30. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

31. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

32. That as a result of the foregoing, the plaintiff OSWALD MCLEAN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF OSWALD MCLEAN

33. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 32 as though more fully set forth herein.

34. That on or about September 27, 2012, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant failed to timely demand, schedule or conducted a General Municipal Law §50h hearing of plaintiff, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

35. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

36. That on or about August 8, 2012 at approximately 3:15 P.M., at or near the northeast corner of East 187th Street and Crotona Avenue, Bronx, New York, the plaintiff OSWALD MCLEAN was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine OSWALD MCLEAN.

37. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

38. That the defendants, their agents, servants and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock, emotional distress and physical consequences.

39. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

40. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

41. That as a result of the foregoing, the plaintiff OSWALD MCLEAN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF OSWALD MCLEAN

42. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 41 as though more fully set forth herein.

43. That the defendants Det. JEREMY VEIT, Det. MACK LIPINSKI, Det. DORIS LOPEZ and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed.

44. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

45. That all criminal charges brought against plaintiff, which were brought under docket number 2012BX045714 in the Bronx County Supreme Court Criminal Division regarding the incidents of August 8, 2012, were dismissed by the Honorable George

Villegas on September 20, 2012, and the criminal proceedings were terminated in plaintiff's favor.

46. That all criminal charges brought against plaintiff were begun in malice without a reasonable belief that the prosecution would succeed.

47. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

48. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately forty three days.

49. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

50. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

51. That as a result of the foregoing, the Plaintiff OSWALD MCLEAN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FORTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF OSWALD MCLEAN

52. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 51 as though more fully set forth herein.

53. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

54. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper conducting arrests and subsequent searching of individuals without a reasonable articulable suspicion of the secreting of evidence within a bodily cavity.

55. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff OSWALD MCLEAN was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur

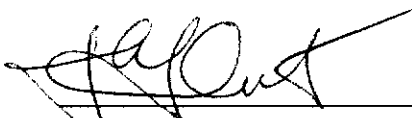
medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

56. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

57. That as a result of the foregoing, the plaintiff OSWALD MCLEAN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third and Forth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
November 4, 3013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
OSWALD MCLEAN

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Det. Jeremy Veit of the NBBX,, Shield No. 2516, Det. Mack Lipinski of the NARCBBX,,
Shield No. 00926,
Det. Doris Lopez of the NBBX,, Shield No. 12703, of the 1 POLICE PLAZA, NY NY
10038

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

OSWALD MCCLEAN

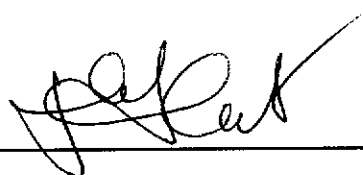
I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently known to be in the county wherein the attorney for the plaintiff maintains his office.

DATED: Bronx, N.Y.
November 4, 2013

A handwritten signature in black ink, appearing to read 'Jonathan L. Gleit', is written over a horizontal line.

JONATHAN L. GLEIT, ESQ.

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-against-

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to designate additional offending officers,

Defendants.

Summons and Verified Complaint

JONATHAN L. GLEIT, ESQ.

Attorney for the Plaintiff

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